Kevin D Turnage

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UNITED STATES DISTRICT COURT

FOR THE DISTRICT OF ARIZONA

Kevin D Turnage, Plaintiff, v. **ROBERT F. KENNEDY, JR,** SECRETARY, U.S. DEPARTMENT OF HEALTH AND HUMAN SERVICES, INDIAN HEALTH SERVICE, Defendant.	Case No.: CV-25-03367-PHX-SMB **FOURTH AMENDED COMPLAINT** **(Jury Trial Demanded)**

Plaintiff Kevin D. Turnage, for his Corrected Fourth Amended Complaint against Defendant Robert F. Kennedy, Jr., in his official capacity as Secretary of the U.S. Department of Health and Human Services, alleges as follows:

I. INTRODUCTION

1. This is an action for employment discrimination and retaliation. Plaintiff alleges that Defendant, acting through his agents and employees at the Indian Health Service ("IHS"), subjected Plaintiff to a continuous pattern of retaliatory and discriminatory adverse personnel actions, culminating in a hostile work environment and an ongoing constructive discharge, after Plaintiff engaged in protected EEO activity.
2. The adverse actions against Plaintiff are not historical but are ongoing. As a direct result of Defendant's actions, Plaintiff has been on involuntary, non-duty leave since June 27, 2025. As of the filing of this Complaint in April 2026, he has been unlawfully excluded from his position for over 281 consecutive days.
3. This Corrected Fourth Amended Complaint is filed to comply with the Court's Order of April 2, 2026 (Doc. 67). It withdraws all claims previously asserted under the Religious Freedom Restoration Act (RFRA), the Civil Service Reform Act (CSRA) related to procedural violations, and 18 U.S.C. §§ 1001 and 1519. Plaintiff sues Defendant in his official capacity only.

II. PARTIES

4. Plaintiff Kevin D. Turnage is a citizen of the United States and a resident of Gilbert, Arizona. At all times relevant to this Complaint, Plaintiff was a career GS-0610-12 employee of the IHS, serving as a Nurse Consultant / Policy & Procedures Officer at the Phoenix Indian Medical Center ("PIMC").
5. Defendant Robert F. Kennedy, Jr. is the Secretary of the U.S. Department of Health and Human Services ("HHS"). Pursuant to 42 U.S.C. § 2000e-16(c), the

head of the department or agency is the only proper defendant in an action under Title VII. Defendant is named in his official capacity only.

III. JURISDICTION AND VENUE

6. This Court has subject matter jurisdiction over this action pursuant to 28 U.S.C. § 1331 (federal question).

7. This action arises under Title VII of the Civil Rights Act of 1964 ("Title VII"), as amended, 42 U.S.C. § 2000e-16; the Age Discrimination in Employment Act of 1967 ("ADEA"), 29 U.S.C. § 633a; Section 501 of the Rehabilitation Act of 1973 ("Rehabilitation Act"), 29 U.S.C. §§ 791 and 794a(a)(1); and the Whistleblower Protection Act ("WPA"), 5 U.S.C. § 2302(b)(8).

8. Venue is proper in the District of Arizona pursuant to 42 U.S.C. § 2000e-5(f)(3) and 28 U.S.C. § 1391(b)(2) because the unlawful employment practices alleged herein were committed within this District, and the relevant employment records are maintained and administered in this District.

IV. ADMINISTRATIVE EXHAUSTION

9. On or about March 21, 2023, Plaintiff initiated informal EEO counseling with the HHS EEO office regarding the initial claims of discrimination and retaliation alleged herein.

10. On or about April 13, 2023, after counseling proved unsuccessful, Plaintiff timely filed a formal EEO complaint of discrimination, assigned Agency No. HHS-IHS-0296-2023.

11. On or about September 2, 2025, Plaintiff received the EEOC's Final Agency Decision, which notified him of his right to file a civil action in federal district court within 90 days.

12. This action was timely commenced on September 15, 2025, well within the 90-day statutory period.

    a. On December 30, 2025, Plaintiff filed a second formal EEO complaint (Agency No. HHS-IHS-0001-2026) alleging ongoing retaliation and discrimination based on Reprisal, Sex (Male), EPA (Male), Religion (Christian), Age, and Disability (physical and mental), thereby exhausting administrative remedies for the continuing violations described herein.

    b. The allegations in the second EEO complaint include, but are not limited to: management's rejection of Plaintiff's reports in April and May 2025; the May 28, 2025 order removing him from policy workflows; the continuing enforced leave from June 2025 to the present; and the use of unsigned, invalid leave extension forms on August 26, 2025.

V. FACTUAL BACKGROUND

A. Employment History

13. Plaintiff has been a federal employee since January 18, 2011, and an employee of the IHS since July 2017. He accepted the GS-0610-12 supervisory position at PIMC on or about March 28, 2022, and at all times performed his duties in a satisfactory manner.

14. In or about 2024, Plaintiff was assigned to the Policy & Procedure Officer position as part of a federally negotiated reasonable accommodation under the Rehabilitation Act, 29 U.S.C. § 791, due to his disability (Type 1 Diabetes). The accommodation included an agreed-upon schedule of four (4) days telework and one (1) day on-site at the hospital, with approved hours of 6:30 AM to 3:00 PM (1530). This accommodation was formally approved and in effect from its commencement, following his earlier detail to the position in March 2023.

B. Protected Activities

15. **Activity 1:** In or about December 2022, Plaintiff engaged in protected opposition activity by assisting four or more female subordinate nurses in filing a formal hostile work environment (HWE) complaint against their supervisor, Tonie Greve, and by emailing IHS Headquarters including Director Roselyn Tso on December 21, 2022, regarding the agency's failure to investigate these complaints while targeting him for disparate treatment.

16. **Activity 2:** On March 21, 2023, Plaintiff engaged in protected opposition activity by reporting what he reasonably believed to be sexual harassment by his second-line supervisor, Candace Lee, in a formal grievance dated March 6, 2023, in which he also alleged that Ms. Lee had threatened to downgrade his performance evaluation in a quid pro quo manner after he rebuffed her physical advances.

17. **Activity 3:** On April 13, 2023, Plaintiff engaged in protected participation activity by filing his formal EEO complaint, Agency No. HHS-IHS-0296-2023; documents subsequently revealed that the sole witness to the alleged incident,

Deputy Chief Pharmacist Ashley Krumenacker, had executed a sworn affidavit unequivocally refuting the agency's claims.

18. **Activity 4:** In May 2023, Plaintiff engaged in protected activity by requesting FMLA leave for a serious medical condition (Type 1 Diabetes), the processing of which was subsequently delayed by management.

19. **Activity 5:** On May 25, 2025, Plaintiff made protected disclosures by serving a formal Protected Disclosure Notice on PIMC officials Clinton Pope, Endreya McCabe, and Debra Ward-Lund regarding compliance failures.

20. **Activity 6:** Throughout June 2025, Plaintiff made numerous protected disclosures to external oversight bodies, including the Office of Special Counsel (OSC), the HHS Office of Inspector General (OIG), the Centers for Medicare & Medicaid Services (CMS), the Joint Commission, Members of Congress, and the GAO regarding waste, fraud, and dangers to public health and safety.

21. **Activity 7:** On December 30, 2025, Plaintiff engaged in further protected participation activity by filing his second formal EEO complaint, Agency No. HHS-IHS-0001-2026, concerning the ongoing retaliation.

C. Knowledge of Protected Activity

22. At all relevant times, PIMC management officials, including but not limited to Debra Ward-Lund, Brandi Benjamin, Clinton Pope, and Endreya McCabe, were aware of Plaintiff's protected activities.

D. Adverse Actions

23. On March 21, 2023, approximately 2 hours and 41 minutes after Plaintiff's protected report against Candace Lee (Activity 2), agency officials placed Plaintiff on administrative leave and had him escorted from the premises by security in view of his colleagues.

    c. The sole witness to the alleged threat, Deputy Chief Pharmacist Ashley Krumenacker, provided a sworn affidavit on March 22, 2023, stating unequivocally that she "did not recall a threat of violence being made by Kevin" and that she "did not recall Kevin stating that he was going to beat the fucking shit out [of Tonie]." Ms. Krumenacker further attested that supervisor Jason White had attempted to coerce her into signing a pre-drafted statement that "did not reflect our conversation nor what I witnessed" and that he was trying to get her to agree with a false version of events.

    d. The Report of Investigation (ROI) for EEO case HHS-IHS-0296-2023 confirms that Ms. Krumenacker's testimony directly contradicted the sole basis for the adverse action. This fabricated pretext was used to justify the immediate removal of a male supervisor while no adverse action was taken against female supervisor Tonie Greve despite multiple corroborated hostile work environment complaints.

24. Between approximately January and April 2023, agency officials deliberately delayed the processing of Plaintiff's FMLA paperwork for over two months. In or about 2024, following Plaintiff's detail to the Policy & Procedure Officer position,

agency officials approved a reasonable accommodation under the Rehabilitation Act, 29 U.S.C. § 791, due to his disability (Type 1 Diabetes), which included an agreed-upon schedule of four (4) days telework and one (1) day on-site with approved hours of 6:30 AM to 3:00 PM (1530). Thereafter, agency officials constructively denied this approved reasonable accommodation by refusing to honor the agreed-upon telework schedule, effectively requiring full-time on-site presence, and by seizing Plaintiff's government equipment on July 18, 2025, rendering him unable to perform his duties from his approved telework location.

25. On May 28, 2025, just three days after Plaintiff's protected disclosure to leadership (Activity 5), PIMC official Clinton Pope ordered Plaintiff to remove himself from all policy approval workflows, effectively stripping him of a core job duty.

26. On June 27, 2025, one day after Plaintiff's external disclosures (Activity 6), agency officials placed Plaintiff on administrative leave, which was converted to investigative leave on July 11, 2025.

27. In August 2025, Director Endreya McCabe attempted to extend Plaintiff's investigative leave using unsigned, procedurally invalid forms.

28. On or about September 25, 2025, the agency conducted a coercive and procedurally defective affidavit proceeding as part of its investigation. This proceeding constituted a further adverse and retaliatory action, characterized by:

    e. **Conflict of Interest:** The investigation was led by Naomi Hixson, the agency's Compliance Officer. Ms. Hixson was a subject of Plaintiff's prior

protected disclosures because she had been copied on, and failed to act upon, reports regarding compliance violations by Clinton Pope, the Chief Quality Officer, in violation of impartiality standards required by Joint Commission LD.04.01.07.

f. **Denial of Due Process:** Plaintiff was required to respond to detailed allegations without access to his government computer, email, or other records necessary to provide complete and accurate answers, violating his Fifth Amendment right to notice and a meaningful opportunity to respond.

g. **Retaliatory Framing of Disclosures:** The proceeding mischaracterized Plaintiff's protected disclosures regarding compliance and patient safety failures as "harassment" and "hostile work environment," a pretextual tactic to punish whistleblowing that is prohibited under the WPA. *See Stone v. FDIC*, 179 F.3d 1368 (Fed. Cir. 1999); *Francis v. DOJ*, 26 M.S.P.R. 183 (1985).

h. **Pretextual Allegations:** The proceeding relied on vague, compound, and leading questions to create a pretext for discipline, including pretextual allegations regarding cloud-based tools and use of the term 'reject/rejected,' which was consistent with his duties under the governing Policy Management Policy at the time.

i. **Fabricated Pretext:** The investigation's pretextual nature was further evidenced by the inclusion of allegations that had been refuted by sworn witness testimony more than two years prior, including the March 2023

fabricated threat claim that Ms. Krumenacker had unequivocally denied under oath.

29. On November 25, 2025, the agency converted Plaintiff's status to an indefinite "notice leave" with no end date, no formal proposal of disciplinary action, and no opportunity to respond.

30. As of April 2026, Plaintiff remains on this involuntary leave, having been excluded from his position and all work duties for over 281 consecutive days.

E. Comparator Evidence and Disparate Treatment

31. Upon information and belief, Jodi O'Malley, a female nurse at PIMC who was approximately 46-47 years of age, engaged in protected whistleblowing activity regarding patient safety. Following her disclosures, the agency subjected Ms. O'Malley to substantially similar adverse personnel actions, including removal from duties and retaliatory leave, demonstrating a pattern and practice of retaliation against employees who report compliance violations, regardless of race, sex, or age, further demonstrating a pattern of retaliating against compliance-reporting employees.

32. The agency's treatment of Plaintiff stands in stark contrast to its treatment of a similarly situated female supervisor, Tonie Greve.

    j. In or about July 2022, at least five female nurses (including Arlene Frost, Brenda Barr/Wren, and Nastassia James) filed formal, corroborated HWE complaints against Ms. Greve.

k. Despite these multiple complaints, agency management refused to detail Ms. Greve out of her supervisory role, explicitly stating that such an action might be "perceived as retaliation" against Ms. Greve. She was permitted to continue supervising the complaining employees without restriction.

l. The agency took NO adverse action against Ms. Greve: she was not placed on leave, not escorted from the facility, and not stripped of her duties. The investigation into her conduct was delayed for over two years.

m. In contrast, when Plaintiff—a male supervisor—was subjected to a single, uncorroborated allegation, he was immediately removed from the worksite within hours. This extreme disparity in treatment—five corroborated complaints against a female supervisor resulting in no action, versus one uncorroborated complaint against a male supervisor resulting in immediate, indefinite removal—demonstrates that the actions against Plaintiff were pretext for discrimination based on his sex.

F. Protected Classes

33. At all relevant times, Plaintiff was a member of multiple protected classes: Caucasian (race), Male (sex), Christian (religion), age 49 (over 40, Date of Birth 04/17/1973), and an individual with a disability (Type 1 Diabetes).

G. Hostile Work Environment

34. The totality of Defendant's conduct including the public and humiliating security escort, the confiscation of his professional credentials, the indefinite removal from his position for over 281 days, the isolation from his colleagues, the refusal to

honor his approved reasonable accommodation schedule of 6:30 AM–3:00 PM with four days telework in favor of mandatory 8:00 AM–5:00 PM on-site hours, and the abrupt seizure of his government equipment on July 18, 2025 was sufficiently severe and pervasive to create a hostile and abusive work environment.

H. Continuing Violation

35. Defendant's actions constitute a continuing violation. Each day that Plaintiff remains on involuntary leave is a new and discrete act of discrimination and retaliation.

VI. CAUSES OF ACTION

COUNT I – DISPARATE TREATMENT DISCRIMINATION

(Title VII – Race (Caucasian), Sex (Male), Religion (Christian)) 36. Plaintiff incorporates by reference the allegations in the preceding paragraphs. 37. Plaintiff is a member of protected classes based on his race, sex, and religion. 38. Defendant, through his agents, subjected Plaintiff to adverse employment actions, including but not limited to being placed on indefinite leave and subjected to a hostile work environment, because of his protected characteristics, as evidenced by the more favorable treatment of similarly situated employees outside his protected classes, such as Tonie Greve.

COUNT II – RETALIATION

(Title VII, 42 U.S.C. § 2000e-16 and Whistleblower Protection Act, 5 U.S.C. § 2302(b)(8)) 39. Plaintiff incorporates by reference the allegations in the preceding paragraphs. 40. Plaintiff engaged in statutorily protected activity. Defendant was aware of

this activity. 41. Subsequent to and because of this protected activity, Defendant subjected Plaintiff to materially adverse actions that would dissuade a reasonable employee from making or supporting a charge of discrimination. The causal connection is established by extreme temporal proximity (e.g., 2 hours and 41 minutes; 1 day; 3 days) and by agency statements that the actions were "retributive."

COUNT III – AGE DISCRIMINATION

(ADEA, 29 U.S.C. § 633a) 42. Plaintiff incorporates by reference the allegations in the preceding paragraphs. 43. At all relevant times, Plaintiff was 49 years old and thus a member of the class protected by the ADEA. 44. Defendant subjected Plaintiff to the adverse employment actions described herein, in whole or in part, because of his age.

COUNT IV – DISABILITY DISCRIMINATION

(Rehabilitation Act, 29 U.S.C. §§ 791, 794a(a)(1)) 45. Plaintiff incorporates by reference the allegations in the preceding paragraphs. 46. Plaintiff is a qualified individual with a disability (Type 1 Diabetes). 47. Defendant subjected Plaintiff to adverse actions because of his disability and constructively denied his reasonable accommodation. The approved accommodation of four days telework with 6:30 AM–3:00 PM hours was unilaterally revoked, Plaintiff was eventually denied his accommodation entirely when the agency seized his equipment on July 18, 2025, rendering him unable to perform his duties from his approved telework location.

COUNT V – RETALIATORY CONSTRUCTIVE DISCHARGE

(Title VII, 42 U.S.C. § 2000e-16) 48. Plaintiff incorporates by reference the allegations in the preceding paragraphs. 49. As a direct result of Plaintiff's protected activities,

Defendant has indefinitely removed Plaintiff from all work duties, barred him from agency facilities, and placed him on involuntary leave for over 281 days with no prospect of return. 50. These actions have created working conditions so intolerable that a reasonable person in Plaintiff's position would feel compelled to separate from employment, constituting a constructive discharge.

VII. PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that this Court enter judgment in his favor and against Defendant, and grant the following relief: A. A declaratory judgment that Defendant's acts and practices violated Plaintiff's rights under federal law; B. Appropriate injunctive relief, including an order directing Defendant to reinstate Plaintiff to his former or a comparable position, and to correct or expunge any improper or retaliatory personnel records; C. An award of back pay, with pre- and post-judgment interest, and other lost benefits of employment to make Plaintiff whole for all earnings he would have received but for Defendant's unlawful conduct; D. An award of compensatory damages for past and future pecuniary and non-pecuniary losses, including emotional distress, humiliation, and mental anguish; E. An award of liquidated damages for Defendant's willful violation of the ADEA; F. An award of Plaintiff's reasonable costs of litigation; and G. Such other and further relief as the Court deems just and proper.

JURY DEMAND

Plaintiff hereby demands a trial by jury on all issues so triable.

DATED this 3rd day of April 2026.

Respectfully submitted,

/s/ Kevin D. Turnage

Kevin D. Turnage

Plaintiff, Pro Se [1]

CERTIFICATE OF SERVICE

I hereby certify that on this 3rd day of April 2026, I will electronically file the foregoing document with the Clerk of the Court using the CM/ECF system, which will send notification of such filing to all counsel of record.

/s/ Kevin D. Turnage

Kevin D. Turnage

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[1] This pleading was drafted with the assistance of legal research software. All citations to statutes and case law have been independently verified by Plaintiff in Westlaw and/or official U.S. Code sources. No citations are included that have not been verified in official legal databases.